

• Regist. fo.
F.N.B. 240. d.

that time made, Rot. par. 2 H. 4. nu. 64. anno 5 H. 4. nu. 33. all which are declaratory of the common law. * And upon the said act of 2 E. 3. a writ is framed, directed to the justices, by which they are commanded, *Quod ad justitiam partibus, &c. faciend' virtute alicujus mandati de magno sigillo, et parvo sigillo vobis direct' seu dirigend' nullatenus superseatis, &c.* And thus much for the common law and acts of parliament.

This statute of 14 E. 3. cap. 5. consisteth of two generall parts, viz. the preamble and the body of the act. In the preamble three things are to be observed. 1. That (notwithstanding the provision of the common law) mischiefs do happen by delay of judgements. 2. It enumerateth in what courts these delays do happen, viz. in the chancery, in the kings bench, the common bench, and the exchequer, the justices assigned, and other justices to hear and determine deputed. 3. It declareth how these delays have grown, viz. sometime for difficulty of the matter in law, sometime in diversity of opinion of the judges, and sometimes for some other cause, that is, by commandements, letters, or messages of the king or great men, &c. In the body of the act we have collected many observations. 1. That at every parliament there shall be chosen a prelate, two earls, and two barons, (for one bishop, two earles, and two barons.) viz. At this parliament were chosen, 1. John Stratford archbishop of Canterbury, (a man famous for learning, loyalty, and vertuous living.) 2. Rich. Fitzalan earle of Arundel, a man of great wisdom, prowes, and integrity. 3. William Clynton earle of Huntingdon, and admiral of England, a man lately before advanced for his singular valour, wisdom, and vertue. 4. The lord Wake of Lidel. and 5. Ralph lord Bassett of Drayton, two of the most renowned barons of England. *Quos omnes honoris causa nomino.*

[69]

2. This act doth appoint that the prelate, two earls, and two barons are to have a commission and power of the king under the great seal (and none of them can be absent) which commission is to endure untill the next parliament.

3. This commission and power consisteth on ten parts. 1. *Ad audiendum*, to hear the petition delivered to them, the complaints of those that will complain to them of such delays or grievances made. 2. *Ad venire faciend'* to do come before them at Westminster, or elsewhere, the tenor of the records and proceses of such judgements so delayed; and this is to be done by the kings writ of *certiorari*. 3. *Ad venire faciend'*, to cause the same justices to come before them. 4. *Ad audiend' suas rationes et causas talium dilationum*, to hear their reasons and causes of such delays which ought to be entred of record. 5. Which causes and reasons so heard, *ad procedendum*, to proceed to make a good accord. 6. But this must be done not only by themselves, but by the good advice of certain assistants appointed by the act, viz. the chancelour, treasurer, the justices of the one bench and the other, and other of the kings counsell, as many, and such as they shall think convenient. 7. *Ad capiendum*, to take a good accord of the assistants. 8. *Ad faciendum*, to make a good judgement. 9. *Ad remandandum*, to remaund before the justices, before whom the plea did depend, the tenor of the said record, together with the judgement that so shall be accorded.